

purposes of this Conservation Restriction and to monitor their implementation. Where the Grantee's approval is required by the terms of this Conservation Restriction, the Grantee shall grant or withhold its approval in writing within sixty (60) days of receipt of the Grantor's written request therefore. Grantee's approval may be withheld upon a determination by the Grantee at its sole discretion that the action as proposed would impair the conservation values of the Premises or would be inconsistent with the conservation values and purposes of this Conservation Restriction.

III. LEGAL RIGHTS AND REMEDIES OF THE GRANTEE

A. Legal and Injunctive Relief. The rights hereby granted shall include the Grantee's right to enforce this Conservation Restriction by appropriate legal proceedings and to obtain injunctive and other equitable relief against any violations, including, without limitation, relief requiring restoration of the Premises to their condition prior to the time of the injury complained of (it being agreed that the Grantee will have no adequate remedy at law). The rights hereby granted shall be in addition to, and not in limitation of, any other rights and remedies available to the Grantee for the enforcement of this Conservation Restriction. Grantee agrees to cooperate for a reasonable period of time prior to resorting to legal means in resolving issues concerning violations provided Grantor ceases objectionable actions and Grantee determines there is no ongoing diminution of the conservation values of the Conservation Restriction.

B. Reimbursement of Costs of Enforcement. The Grantor and the successors and assigns of the Grantor covenant and agree to reimburse the Grantee for all reasonable costs and expenses (including without limitation reasonable counsel fees) incurred in enforcing this Conservation Restriction or in taking reasonable measures to remedy or abate any violation thereof, provided that a violation of this Conservation Restriction is acknowledged by the Grantor or determined by a court of competent jurisdiction to have occurred.

C. Boundary Disputes. In the event of a dispute over the location of the boundaries of the Conservation Restriction, Grantor shall be responsible for hiring a licensed surveyor to perform a survey of the disputed boundary and install permanent boundary markers.

D. Non-Waiver. Enforcement of the terms of this Conservation Restriction shall be at the discretion of the Grantee. Any election by the Grantee as to the manner and timing of its right to enforce this Conservation Restriction or otherwise exercise its rights hereunder shall not be deemed or construed to be a waiver of such rights.

E. Disclaimer of Liability. By its acceptance, the Grantee does not undertake any liability or obligation relating to the condition of the Premises pertaining to compliance with and including, but not limited to, hazardous materials, zoning, environmental laws and regulations, or acts not caused by the Grantee or its agents.

F. Acts Beyond the Grantor's Control. Nothing contained in this Conservation Restriction shall be construed to entitle the Grantee to bring any action against the Grantor for any injury to or change in the Premises resulting from causes beyond the Grantor's control, including but not limited to fire, flood, storm and earth movement, or from any prudent action taken by the Grantor under emergency conditions to prevent, abate, or mitigate significant injury to the Premises resulting from such causes. In the event of any such occurrence, the Grantor and Grantee will cooperate in the restoration of the Premises, if desirable and feasible.

G. Actions to Prevent or Remedy Violations. The Grantee shall have the right to take appropriate actions to prevent, abate, or remedy violations of this Conservation Restriction, including violations by non-parties.

IV. ACCESS BY THE GRANTEE

The Grantor hereby grants to the Grantee, or its duly authorized agents or representatives, the right to enter the Premises upon reasonable notice and at reasonable times, for the purpose of inspecting the Premises to determine compliance with, to make a determination whether to approve an activity pursuant to Section II (D), or to enforce this Conservation Restriction. The Grantor also grants to the Grantee, after notice of a violation and failure of the Grantor to cure said violation, the right to enter the Premises for the purpose of taking any and all actions with respect to the Premises as may be necessary or appropriate to remedy or abate any violation hereof, including but not limited to the right to perform a survey of boundary lines. The Grantee shall have the right, but not the obligation, at its sole expense, to perform any other acts required to preserve, conserve or promote the natural habitat of wildlife, fish or plants located on the Premises. The Grantee shall have the right to erect and from time to time replace, at appropriate locations near the boundaries of the Premises, suitable signs identifying the Grantee as the holder of this Conservation Restriction.

V. EXTINGUISHMENT

A. Termination only by Judicial Proceeding and Grantee's Right to Recover Proportional Value. If circumstances arise in the future such as render the purpose of this Conservation Restriction impossible to accomplish, this Restriction can only be terminated or extinguished, whether in whole or in part, by judicial proceedings in a court of competent jurisdiction under applicable law, and after review and approval by the Commonwealth of Massachusetts Secretary of the Executive Office of Energy and Environmental Affairs. If any change in conditions ever gives rise to extinguishment or other release of the Conservation Restriction under applicable law, which extinguishment or release must be accomplished by judicial proceedings in a court of competent jurisdiction, then the Grantee, on a subsequent sale, exchange or involuntary conversion of the Premises, shall be entitled to a portion of the proceeds in accordance with Paragraph B below, subject however, to any applicable law which expressly provides for a different disposition of proceeds, and after complying with any gift, grant, or funding requirements.

B. Proceeds; The Grantee's Receipt of Property and Development Rights. The Grantor and the Grantee agree that the grant of this Conservation Restriction gives rise to a property right, immediately vested in the Grantee, with a fair market value that is at least equal to the proportionate value that this Conservation Restriction, determined at the time of the gift, bears to the value of the unrestricted Premises at that time and represents all land development rights associated with the Premises, except as such rights may have been specifically retained pursuant to this Conservation Restriction. Such proportionate value of the Grantee's property right shall remain constant. Any proceeds will be distributed only after complying with the terms of any gift, grant, or other funding requirements.

C. Cooperation Regarding Public Action. Whenever all or any part of the Premises or any interest therein is taken by public authority under power of eminent domain, or if all or any part of this Conservation Restriction is otherwise extinguished by act of public authority, then the Grantor and the Grantee shall cooperate in recovering the full value of all direct and consequential damages resulting from such action. All related expenses incurred by the Grantor and the Grantee shall first be paid out of any recovered proceeds, and the remaining proceeds shall be distributed between the Grantor and the Grantee in accordance with paragraph B above after complying with the terms of any gift, grant, or funding requirements. If less than fee interest is taken, the proceeds shall be equitably allocated according to the nature of the interest taken. The Grantee shall use its share of any proceeds received pursuant to this Section V in a manner consistent with the conservation purposes of this Conservation Restriction.

VI. ASSIGNABILITY

A. Running of the Burden. The burdens of this Conservation Restriction shall be deemed to run with the Premises in perpetuity, shall be enforceable in perpetuity against the Grantor, the Grantor's successors in title to the Premises, and any person holding any interest therein, by the Grantee, its successors and assigns acting by and through its duly designated officers, directors, employees or agents as holders of this Restriction.

B. Execution of Instruments. The Grantee is authorized to record or file any notices or instruments appropriate to assuring the perpetual enforceability of this Conservation Restriction; and the Grantor on behalf of themselves and their successors and assigns appoint the Grantee their attorney-in-fact to execute, acknowledge and deliver any such instruments on their behalf. Without limiting the foregoing, the Grantor and their successors and assigns agree themselves to execute any such instrument upon request.

C. Running of the Benefit. The benefits of this Conservation Restriction shall run to the Grantee, shall be deemed to be in gross and shall not be assignable by the Grantee, except the Grantee and its successors and assigns shall have the right to assign all or a portion of its right, title and interest hereunder to a "Qualified Organization" as defined in Section 170(h)(3) of the Internal Revenue Code provided that such assignee shall also be an eligible grantee of a conservation restriction as set forth in Chapter 184, Section 32 of the General Laws of Massachusetts, the assignee is not the fee owner of the property, and provided further that, as a condition of such assignment, the assignee is required to hold this Conservation Restriction and enforce its terms for conservation purposes and ensure that the purposes of this Conservation Restriction continue to be carried out. Any assignment will comply with Article 97 of the Amendments to the Constitution of the Commonwealth of Massachusetts, if applicable.

VII. SUBSEQUENT TRANSFERS

The Grantor agrees to incorporate by reference the terms of this Conservation Restriction in any deed or other legal instrument which grants any interest in all or a portion of the Premises, including a leasehold interest and to notify the Grantee within 20 days of such transfer. Failure to do any of the above shall not impair the validity or enforceability of this Conservation Restriction. Any transfer will comply with article 97 of the Amendments to the Constitution of the Commonwealth of Massachusetts, if applicable.

The Grantor shall not be liable for violations occurring after their ownership. Liability for any acts or omissions occurring prior to any transfer and liability for any transfer if in violation of this Conservation Restriction shall survive the transfer. Any new owner shall cooperate in the restoration of the Premises or removal of violations caused by prior owner(s) and may be held responsible for any continuing violations.

VIII. ESTOPPEL CERTIFICATES

Upon receipt of a written request by the Grantor, the Grantee shall within thirty (30) days thereafter, execute and deliver to the Grantor, or any person designated by Grantor, any document, including an estoppel certificate, that certifies, to the best of Grantee's knowledge, Grantor's compliance with any obligation Grantor contained in this Restriction, and which otherwise evidences the status of this Restriction.

IX. NON-MERGER

The parties intend that any future acquisition of the Premises shall not result in a merger of the Conservation Restriction into the fee. The Grantor agrees that it will not grant, and the Grantee agrees that it will not take title, to any part of the Premises without having first assigned this Conservation Restriction to a non-fee owner that is qualified under Section 170(h) of the Internal Revenue Code of 1986, as amended, and applicable regulations thereunder and is eligible to receive this Conservation Restriction under Section 32 of Chapter 184 of the General Laws of Massachusetts in order to ensure that merger does not occur and that this Conservation Restriction continues to be enforceable by a non-fee owner.

X. AMENDMENT

If circumstances arise under which an amendment to or modification of this Conservation Restriction would be appropriate, Grantor and Grantee may jointly amend this Conservation Restriction; provided that no amendment shall be allowed that will affect the qualification of this Conservation Restriction or the status of Grantee under any applicable laws, including Section 170(h) of the Internal Revenue Code of 1986, as amended, or Sections 31-33 of Chapter 184 of the General laws of Massachusetts. Any amendments to this Conservation Restriction shall only occur in exceptional circumstances. The Grantee will consider amendments only to correct an error or oversight, to clarify an ambiguity, or where there is a net gain in conservation value. All expenses of all parties in considering and/or implementing an amendment shall be borne by the persons or entity seeking the amendment. Any amendment shall be consistent with the purposes of this Conservation Restriction, shall not affect its perpetual duration, shall be approved by the Secretary of Energy and Environmental Affairs and if applicable, shall comply with the provisions of Art. 97 of the Amendments to the Massachusetts Constitution, and any gifts, grants or funding requirements. Any amendment shall be recorded in the Essex County Registry of Deeds.

XI. EFFECTIVE DATE

This Conservation Restriction shall be effective when the Grantor and the Grantee have executed it, the administrative Approvals required by Section 32 of Chapter 184 of the General Laws have been obtained, and it has been recorded in a timely manner in the appropriate Essex Registry of Deeds.

XII. NOTICES.

Any notice, demand, request, consent, approval, or other communication that either party desires or is required to give pursuant to this Conservation Restriction is deemed delivered upon receipt and shall be in writing and either served personally or sent by first class mail, postage prepaid, return receipt requested, certified mail, return receipt requested, or delivered by a nationally recognized overnight delivery service such as Federal Express or United Parcel Service, and addressed as follows or to such other address as any of the below parties shall designate from time to time by written notice to the other or that is reasonably ascertainable by the parties:

If to Grantor:

Essex County Greenbelt Association, Inc.
ATTN: Director of Stewardship
82 Eastern Ave.
Essex, MA 01929
Phone: 978-768-7241

If to Grantee:

BTA/BOLT, Inc.

ATTN: President
P.O. Box 95
Boxford, MA 01921
Phone: 978-887-7031

XIII. GENERAL PROVISIONS

A. Controlling Law. The interpretation of this Conservation Restriction shall be governed by the laws of the Commonwealth of Massachusetts.

B. Liberal Construction. Any general rule of construction to the contrary notwithstanding, this Conservation Restriction shall be liberally construed in favor of the grant to effect its conservation purposes and the policies and purposes of M.G.L. Chapter 184, Sections 31-33. If any provision of this instrument is found to be ambiguous, an interpretation consistent with the purposes of this Conservation Restriction that would render it valid shall be adopted over any interpretation that would render it invalid.

C. Severability. If any provision or condition of this Conservation Restriction or the application thereof to any person or circumstance shall be declared invalid, the remainder of the provisions of this Conservation Restriction shall not be affected thereby.

IX. MISCELLANEOUS

A. Pre-existing Public Rights. Approval of this Conservation Restriction pursuant to M.G.L. Chapter 184, Section 32 by any municipal officials and by the Secretary of Energy and Environmental Affairs is not to be construed as representing the existence or non-existence of any pre-existing rights of the public, if any, in and to the Premises, and any such pre-existing rights of the public, if any, are not affected by the granting of this Conservation Restriction.

B. Representations of the Grantee. The Grantee represents that it is a not for profit corporation, that it has a perpetual existence, that it is organized and operated for the purpose of preserving and conserving natural resources, natural habitats, environmentally sensitive areas and for other charitable, scientific and educational purposes, that it has both the necessary funds and commitment to hold this Conservation Restriction exclusively for conservation purposes in perpetuity and to enforce its terms, that it is a "Qualified Organization" as that term is defined in Section 170(h)(3) of the Internal Revenue Code of 1986, as amended, and that it is an eligible donee of a conservation restriction as set forth in Chapter 184, Section 32 of the General Laws of Massachusetts, as amended.

C. Prior Encumbrances. This Conservation Restriction shall be in addition to and not in substitution of any other restrictions or easements of record affecting the Premises.

D. Entire Agreement. This instrument sets forth the entire agreement of the parties regarding this Conservation Restriction and supersedes all prior discussions, negotiations, understandings or agreements relating to this Conservation Restriction, all of which are merged herein.

E. Included hereto and incorporated herein are the following:

Signature pages:

Grantor: Essex County Greenbelt Association, Inc.

Grantee: BTA/BOLT, Inc.

Approval of Haverhill Mayor and City Council

Approval by Mass. Secretary of Energy and Environmental Affairs

Exhibit A: Sketch Plan of Conservation Restriction

IN WITNESS WHEREOF, the said Essex County Greenbelt Association, Inc. grants this Conservation Restriction to BTA / BOLT, Inc. and agrees to be bound by its terms, have hereunto set its hands and seals this ____ day of _____, 2017.

ESSEX COUNTY GREENBELT ASSOCIATION, INC.

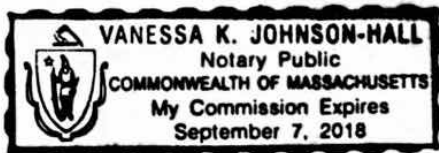
By: Edward O. Becker
Name: Edward O. Becker
Title: President
Hereunto duly authorized

By: Francis McD. Culver
Name: Francis McD. Culver
Title: Treasurer
Hereunto duly authorized

COMMONWEALTH OF MASSACHUSETTS

Essex, ss.

On this 16th day of October, 2017, before me, the undersigned notary public, personally appeared Edward O. Becker, proved to me through satisfactory evidence of identification, which was ☒ my personal knowledge of the principal's identity ☐ a Massachusetts driver's license, to be the person whose name is signed on the preceding document, and acknowledged to me that s/he signed it voluntarily for its stated purpose.

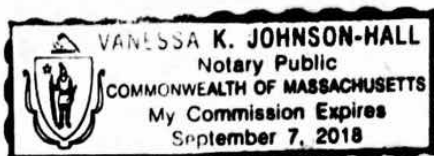


Vanessa K. Johnson-Hall
Notary Public
My Commission Expires: 9/7/18

COMMONWEALTH OF MASSACHUSETTS

Essex, ss.

On this 17th day of October, 2017, before me, the undersigned notary public, personally appeared Francis McD. Culver, proved to me through satisfactory evidence of identification, which was ☒ my personal knowledge of the principal's identity ☐ a Massachusetts driver's license, to be the person whose name is signed on the preceding document, and acknowledged to me that s/he signed it voluntarily for its stated purpose.



Vanessa K. Johnson-Hall
Notary Public
My Commission Expires: 9/7/18

ACCEPTANCE OF GRANT

BTA/BOLT, Inc. hereby accepts this Conservation Restriction from Essex County Greenbelt Association, Inc. and agrees to be bound by its terms.

BTA/BOLT, INC.

By: Natasha Grigg

Name: Natasha Grigg

Title: President

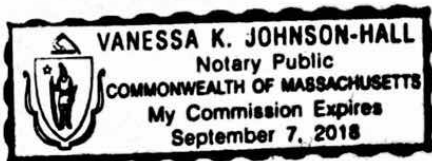
Hereunto duly authorized

COMMONWEALTH OF MASSACHUSETTS

Essex, ss.

On this 17th day of October, 2017, before me, the undersigned notary public, personally appeared Natasha Grigg, proved to me through satisfactory evidence of identification, which was ☒ my personal knowledge of the principal's identity ☐ a Massachusetts driver's license, to be the person whose name is signed on the preceding document, and acknowledged to me that s/he signed it voluntarily for its stated purpose.

Vanessa K. Johnson-Hall
Notary Public
My Commission Expires: 9/7/18



APPROVAL BY CITY COUNCIL

We, the undersigned, being a majority of the City Council of the City of Haverhill, Massachusetts, hereby certify that at a public meeting duly held on October 3, 2017 the City Council voted to approve the foregoing Conservation Restriction from Essex County Greenbelt Association, Inc. to Boxford Trails Association / Boxford Open Land Trust, Inc. for the preservation of the natural resources of said City and being in the public interest pursuant to Massachusetts General Laws Chapter 184, Section 32.

John A. Michelton
Cole F.B.
Mary Ellen Daly Brier
William J. Masek
Carolanne

[Signature]
Melinda E. Bant
[Signature]
M. M. Sonay

COMMONWEALTH OF MASSACHUSETTS

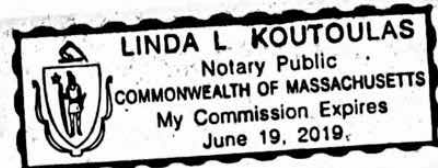
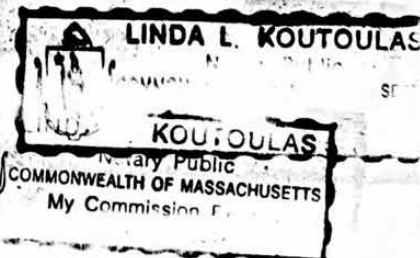
Essex, ss.

On this 3rd day of Oct, 2017, before me, the undersigned notary public, personally appeared Haverhill City Council proved to me through satisfactory evidence of identification, which was ☒ my personal knowledge of the principal's identity ☐ a Massachusetts driver's license, to be the person whose name is signed on the preceding document, and acknowledged to me that s/he signed it voluntarily for its stated purpose.

[Signature]

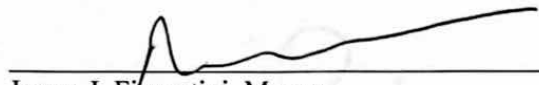
Notary Public
My Commission Expires:

6/19/19



APPROVAL BY MAYOR

I, the undersigned James J. Fiorentini, Mayor of the City of Haverhill, Massachusetts, hereby approve the foregoing Conservation Restriction from the Essex County Greenbelt Association, Inc. to the Boxford Trails Association / Boxford Open Land Trust, Inc. as being in the public interest pursuant to Massachusetts General Laws Chapter 184, Section 32.


James J. Fiorentini, Mayor

COMMONWEALTH OF MASSACHUSETTS

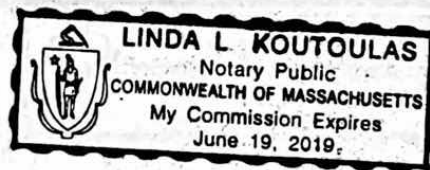
Essex, ss.

On this 3rd day of Oct, 2017, before me, the undersigned notary public, personally appeared James J. Fiorentini, proved to me through satisfactory evidence of identification, which was ☒ my personal knowledge of the principal's identity ☐ a Massachusetts driver's license, to be the person whose name is signed on the preceding document, and acknowledged to me that s/he signed it voluntarily for its stated purpose.


Notary Public

My Commission Expires:

6/19/19



APPROVAL BY SECRETARY OF ENERGY AND ENVIRONMENTAL AFFAIRS OF THE
COMMONWEALTH OF MASSACHUSETTS

The undersigned, Secretary of Executive Office of Energy and Environmental Affairs of the Commonwealth of Massachusetts, hereby certifies that the foregoing Conservation Restriction from Essex County Greenbelt Association, Inc. to BTA/BOLT, Inc. to has been approved in the public interest pursuant to Massachusetts General Laws, Chapter 184, Section 32.

Dated: 10/31, 2017


Secretary of Energy and Environmental Affairs

COMMONWEALTH OF MASSACHUSETTS

Suffolk, ss.

On this 31st day of October, 2017, before me, the undersigned notary public, personally appeared Matthew A. Beaton, proved to me through satisfactory evidence of identification, which was ☐ my personal knowledge of the principal's identity ☒ a Massachusetts driver's license, to be the person whose name is signed on the preceding document, and acknowledged to me that s/he signed it voluntarily for its stated purpose.


Notary Public
My Commission Expires: 12/28/23

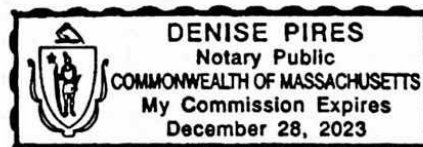
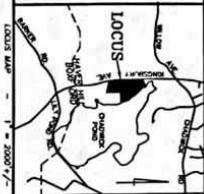


EXHIBIT A

Sketch Plan of Conservation Restriction





FOR RECORD ONLY
LOCUS MAP - 1" = 2000'

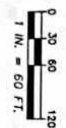
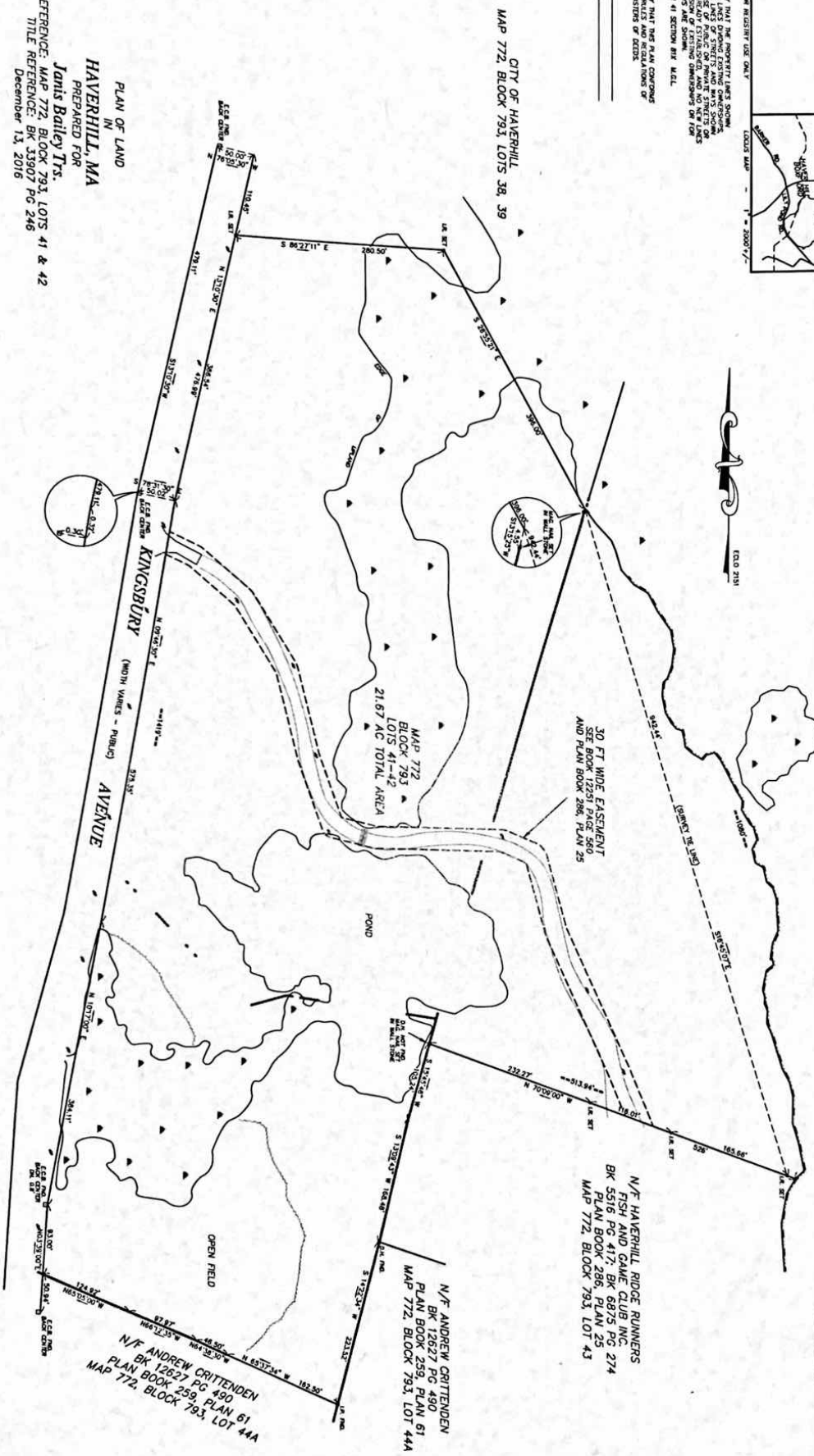
I CERTIFY THAT THE PROPERTY LINES SHOWN
ON THIS MAP WERE MEASURED BY ME OR BY
A LICENSED SURVEYOR AND THAT THE LINES
AND THE LOTS OF STREETS AND RAILS SHOWN
HEREON ARE TRUE TO THE RECORDS OF THE
RECORDS OF THE CITY OF HAVERHILL, MASS.
AND THE RECORDS OF THE COMMONWEALTH OF MASSACHUSETTS.
I HAVE NOT BEEN AWARE OF ANY OTHER
CLAIMS TO THE PROPERTY SHOWN ON THIS
MAP.
CHAPTER 41 SECTION 81C M.G.L.

I CERTIFY THAT THIS PLAN COMBINES
THE RECORDS OF THE CITY OF HAVERHILL
AND THE RECORDS OF THE COMMONWEALTH OF MASSACHUSETTS.

DATE: _____

CHADWICK POND

CITY OF HAVERHILL
MAP 772, BLOCK 793, LOT 40



1 IN. = 60 FT.

COUNTY LAND SURVEYS, INC.
Haverhill, MA
www.countysurveys.com 978-262-6443

DWG 142231-1